I am writing in response to the NSF's request for information and OpenAI's submission on the same. I am explicitly speaking for myself and not representing my company, which is not OpenAI. I have spent the past several years working at one of the companies at the forefront of AI, and am knowledgeable about the technology and its effects. With apologies, I am choosing to remain anonymous because the last individual to publicly disagree with OpenAI and point out the conflict of AI training with the Copyright Act, former OpenAI employee Suchir Balaji, was found shot to death in his apartment in November 2024, with no signs of suicidal intent. I believe it is possible that his death resulted from his disagreement with OpenAI on fair use, and would like to note the potential danger for ordinary Americans in disagreeing with powerful executives at the helm of billion-dollar companies. If a name is required for this comment to be considered complete, please use "John Doe."

PREEMPTION

President Trump's Executive Order prompting the current request for information calls for American AI that is "free from ideological bias or engineered social agendas," which I am glad to support. However, OpenAI's call for preemption of state laws goes in a different direction from the goals of that Executive Order. The state laws that OpenAI is calling to overturn include California's prohibitions on deepfakes, 98% of which are pornographic and target women and girls; Tennessee's industry-defending regulations against commercial exploitation of singers' and actors voices; and multiple states' laws protecting vulnerable Americans from the use of AI in scams and fraud.

It is precisely the willingness of responsible US AI companies to follow the law and reduce the threat of their models to Americans that make US AI products more desirable to lawful customers both at home and abroad. For example, compliance with the EU's AI Act and GDPR is necessary for market competitiveness in Europe. OpenAI's desire for preemption translates directly to legalizing attacks on ordinary Americans, especially girls, politicians, public figures, creators, and innovative small business owners. Many of these attackers would be foreigners and foreign states using American AI against Americans.

When OpenAI writes about China that "Their models also more willingly generate how-to’s for illicit and harmful activities such as identity fraud and intellectual property theft, a reflection of how the CCP views violations of American IP rights as a feature, not a flaw," this is also an accurate description of how OpenAI wishes to operate in the US. That is, OpenAI is seeking the President's blessing to become more like the CCP, so that OpenAI's models can also legally generate how-tos for illicit and harmful activities and violate American AP rights as a feature, not a flaw. The present ethical difference between US AI models and those of less-regulated countries is precisely due to US regulation and US companies' development of AI in anticipation of the guardrails that

OpenAI describes as "overly burdensome." This ethical advantage, which is also a commercial and competitive advantage globally, would disappear if the preemption requested by OpenAI were to be granted.

Agreeing to OpenAI's demand for preemption would directly cause a large increase in AI-generated child sexual assault material (CSAM), suicides of deepfaked women and girls and defrauded Americans, and tremendous economic losses in the US--though OpenAI does stand to profit. This can hardly be said "to promote human flourishing, economic competitiveness, and national security," which is the goal of the AI Action Plan. National laws should standardize the protections for Americans and American creative products introduced at the state level, with the state laws as a floor. Preemption should not occur without those national measures for defending Americans firmly in place, and in effect.

COPYRIGHT

As the Executive Order states: "This order shall be implemented consistent with applicable law." The most pertinent federal law being violated by major AI companies today, with the possible exception of Adobe, is the Copyright Act. During its history, the US population has been disproportionately blessed with creative ability, resulting in the creation of businesses small and large, from the Walt Disney company to knitters who sell their designs online. All of these artists, creators, and business owners benefited from US copyright protection and regulation. OpenAI's suggestions that the federal government give AI companies carte blanche to violate the copyright protections of creators is legally questionable and prioritizes the interests of one massive company against many smaller businesses and individuals. Doing as OpenAI requests would mean that any of the foreign piracy networks listed on the Notorious Markets for Counterfeiting and Piracy could call themselves AI companies and claim the US IP they are violating is training data for AI models, and thereby skirt the consequences of US laws.

As the NSF may be aware, the US Copyright Office is due to publish the third part of its guidance on AI and Copyright, addressing the issue of fair use, in May or June 2025. Prior to proposing any policy changes, the NSF should incorporate that guidance, whatever it will be, into its understanding of how AI training interacts with the rights of creative and innovative Americans and the Copyright Act.

CAUTIONS AND LIMITATIONS

It is also notable that OpenAI has not mentioned anywhere in its comment submissions any of the limitations of AI that make its usefulness dependent on careful scrutiny, audits, and examination. These include the ineradicable tendency of AI models to hallucinate, i.e. to make up nonexistent facts or citations; the inability of AI to filter for irony, resulting in notable recommendations that people eat rocks or glue; the inability to handle completely new and unprecedented data that does not appear in the training set; the ability of generative models to regurgitate training data that can include private and personally identifying information; and so on. One study found that diagnostic AI models had a counterintuitive unhelpful effect on doctors: where AI models were confident in their diagnosis, doctors were also confident and so did not need the AI model. Where AI models were uncertain, doctors were also uncertain, and relied more heavily on the AI model's prediction, even though that prediction was less likely to be correct. Particularly in sensitive or life-and-death contexts, such as healthcare, AI use should be careful, measured, and deployed only with human supervision. US citizens' sensitive and personal information, as well as sensitive US intelligence, should never be fed to publicly accessible models. All outputs should be carefully scrutinized, and failsafes for hallucinations, inaccuracies, and similar errors should be put in place.

Thank you to the NSF and OSTP for their time and attention.

Anonymous Employee of a US AI Company

(John Doe)
